**R. SEKARAN** M.A., B.L.,
**ADVOCATE**
ATTORNEY for Intellectual Property Right
Ministry of Communications & Information Technology
Govt. of India
Standing Counsel for B.S.N.L. Tamil Nadu Circle
Standing Counsel for B.S.N.L. Chennai Telephones

**Chamber :**
No.312, Addl. Law Chambers,
2nd Floor, High Court Buildings,
Chennai - 600 104.

**Residence :**
Plot No.9, Door No.1, First Street,
Shanthi Nagar, Adambakkam,
Chennai - 600 088. Cell: 9445622948

By R.P.A.D.

05.07.2023

To

1. K.T. Sathiyamoorthy
D. No. 20/1, New No. 37
Sivan Koil South Street,
Vadapalani,
Chennai – 600 026.

2. V. S. Ganapathy
D. No. 20/1, New No. 37
Sivan Koil South Street,
Vadapalani,
Chennai – 600 026.

Sir,

Ref: i) Sale Deed dated 15.12.1983 Registered as Document No. 3376/1983 in SRO, Kodambakkam,

ii) Sale Deed dated 26.03.2002 Registered as Document No. 1617/2002 in SRO, Kundrathur.

iii) Settlement Deed dated 03.05.2023 Registered as Document No. 1469/2023 in SRO, Ashok Nagar.

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Under instruction from my client Mrs Shantha Nayagi, residing at No. E-96, MMDA Colony, Arumbakkam , Chennai - 600 106. I am issuing this notice to you as under: -

K. Santha Nayagi

1. My client states that she is the daughter of 1st of you and sister of second of you. At present my client is a acute cancer patient for the past five years and she is surviving due to the constant medical treatment which fact both of you are very much aware. The entire medical treatment expenses is being borne by her husband who is a call taxi driver .

2. My client states that the property measuring an extent of 1.13 Acre comprising in Survey No. 641 extent of 0.95 cents Survey No. 549 Extent of 0.18 cents Malaiyambakkam Village, Sriperumbuthur Taluk, Kancheepuram District which was the ancestral property of Navaneethammal and Thirumalai Mudaliar.

3. My client states that the brother-in-law of the brother of first of you one Mr. K.T. Sankarraj was owning an extent of 2400 sq.ft. vacant house-site situated at Old Door No. 20, New No. 37 Sivan Koil Street, Kodampakkam Village bearing R.S. No. 37/7 , 37/2 (Part , Old Survey No. 37/32A and 37 (Part) 37/32B (Part) Block No. 4 T.S. No. 69, New T.S. No. 69/1, Kodampakkam Village, Chennai District.

K. Sankarayah

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4. My client further state that as per arrangements between the first of you and your brother Mr. K.T. Sankarraj, the said ancestral property should be given to the brother of first of you Mr. Sankarraj and as a consideration for that, Sankarraj's Father-in-law and brother-in-law (1) Mr. Sampath Mudaliar, S/o Rajagopal Mudaliar and his son (2). S. Pandurangan S/o, R.Sampath Mudaliar should give their vacant land at Vadapalani infavour of the first of you. It was mutually agreed between first of you and your brother Mr. K.T.Sankar Raj that both transfer should be in the form of absolute sale deeds in favour first of you and the brother Mr. Sankarraj.

5. My client further states that as per the above said arrangement a sale deed was executed by R. Sampath Mudaliar and Mr. S. Pandurangan S/o Sampath Mudaliar, FATHER-IN-LAW of the brother –in-law of the brother of first of you K.T. Sankarraj and his son in favour of Mr. K.T. Sathyamoorthy the first of you, under Sale Deed dated 15.12.1983 Document No.3376/1983 in SRO, Kodambakkam, referred as item No.1 herein above and as a consideration for that our ancestral property situated at Malaiyambakkam Village

K. Sathyamoorthy

was given to the brother of the first of you Mr. K.T.Sankarraj by me and both of you, under sale deed dated 26.03.2002 registered as Document No.1617/2002 in SRO, Kundrathur. It is relevant to point out that no money was exchanged for consideration for both the sale deeds and it was understood between the parties that it was a mere exchange of properties without consideration for the sale deeds executed in both the cases. Therefore the property situated Door No. Old No. 20 New No.37 Sivan Koil South Street, Kodambakkam , stated herein above be the ancestral property of my client and both of you . Further a three storied building was constructed in the said property out of family fund, in consideration of the ancestral property of Malaiyambakkam Village.

6. My client further states that from the details given above it is clear that the land and building at Sivan Koil South Street, Kodambakkam, is the ancestral property of my client and both of you.

7. My client further states that while the facts remain so without the knowledge of my client, the first of you executed a Settlement Deed infavour second of you under a settlement deed dated 03.05.2023, registered as Document No. 1469/2023 in SRO Ashok Nagar which is nonest and sham and nominal document. My client as well as both of

K. Sankaranayaki

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you are joint owner of the said property . My client has 1/3rd share in the said property. The first of you have no right or authority to execute a Settlement Deed in favour of the second of you including the 1/3rd share of my client. The market value said property is more than **Rupees 10 Crore.** My client is entitled to 1/3rd share from said property.

8. My client further state that since the said settlement is sham and nominal, it has to be cancelled at the earliest in so far as it relates to the 1/3rd share of my client or else both of you should pay 1/3rd market value of property which is estimated at Rs. 3,65,00,000/- within two months from the date of receipt of this legal notice, failing which law will take its course to realize the 1/3rd share of my client and in such circumstances both of you will be held liable for all costs and consequences thereof .

Yours Sincerely

05/07/2023

(R.SEKARAN)
Advocate.

K. Santhamayathi